

Court No. - 29

Case :- WRIT - C No. - 26048 of 2010

Petitioner :- M/S Bhawani Shanker Cement Pvt. Ltd. And Anr.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- C.S.C.,A.S.G.I.2010/921,H.P. Dubey

Hon'ble Sunil Ambwani,J.

Hon'ble Kashi Nath Pandey,J.

As prayed by Shri H.P. Dubey appearing for respondents, put up on Monday.

Order Date :- 14.5.2010

RKP

Court No. - 2

Case :- WRIT - C No. - 26048 of 2010

Petitioner :- M/S Bhawani Shanker Cement Pvt. Ltd. And Anr.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- C.S.C.,A.S.G.I.2010/921,H.P. Dubey

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

As prayed by Shri Mayank Agarwal, list on 5/8/2010.

Order Date :- 26.7.2010

SB

Court No. - 10

Case :- WRIT - C No. - 26048 of 2010

Petitioner :- M/S Bhawani Shanker Cement Pvt. Ltd. And Anr.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- C.S.C.,A.S.G.I.2010/921,H.P. Dubey

Hon'ble Arun Tandon,J.

Hon'ble Harsh Kumar,J.

This writ petition has been filed basically for challenging the provisional assessment bill/order, which has been issued on the basis of the checking report submitted by the checking team in respect of supply of electrical energy to the petitioner's industry, established in the name and style of M/s. Bhawani Shanker Cement Pvt. Ltd, Jaunpur.

Under the notice, the petitioner has been called upon to file his objections if any against the checking report as well as determination of quantum of charges payable by the petitioner on its basis. It appears that instead of responding to the notice so issued, the petitioner has opted to file present writ petition for quashing of the provisional assessment bill/order, referred to above as well as to challenge the vires of Section 126 Electricity Act, 2003 and clause 8.1 and 6.8 of Electricity Supply Code, 2005, basically on the ground that "hearing" & "assessment" which is required to be done by one and the same "Assessing Officer".

We are of the considered opinion that there is hardly any substance worth consideration on the issue of vires as has been raised by the petitioner qua the provisions of Section 126 of the Electricity Act, 2003 and clause 8.1 and 6.8 of Electricity Supply Code, 2005 being ultra-vires to Article 14 of the Constitution of India.

Learned counsel for the petitioner has utterly failed to sustain his contentions by any submission worth consideration in support of the said prayer.

We, therefore, do not find any good ground to entertain the present writ petition in so far as it challenges the Section 126 Electricity Act, 2003 and clause 8.1 and 6.8 of Electricity Supply Code, 2005 being ultra-vires to Article 14 of the Constitution of India.

We are of the considered opinion that the petitioner has an opportunity to file objections against the checking report as well as

the quantum of charges determined on the basis of the checking report. He may respond to the notice so issued. He may file such objections, as may be advised and permissible under law.

The writ petition is dismissed.

Interim order, if any, is discharged.

Order Date :- 7.1.2016
vs/B.Pratap